

24TRCV01953 24TRCV01953

County: los-angeles

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Case Number: 24TRCV01953 Hearing Date: September 21, 2026 Dept: M

LOS ANGELES SUPERIOR COURT –
SOUTHWEST DISTRICT

Honorable Amy N. Carter Monday,
September 21, 2026 Department M Calendar
No.

PROCEEDINGS

Natividad
Serna, et al. v. BMW of North America, LLC, et al.

24TRCV01953

1. Natividad Serna, et al.'s Motion for Attorneys' Fees,
Costs, and Expenses

TENTATIVE RULING

Natividad Serna, et al.'s Motion for Attorneys' Fees,
Costs, and Expenses is granted in part.

Background

Plaintiffs filed the Complaint on June 10, 2024.

Plaintiffs allege the following facts. Plaintiffs purchased a 2023 BMW i4 which was manufactured and distributed by Defendant. The vehicle suffers from defects. Defendant has not been able to repair the vehicle. Defendant has

refused to repurchase the vehicle. Plaintiff alleges violations of the Song-Beverly Consumer Warranty Act ("Song-Beverly Act").

Motion for Attorneys' Fees

Civ. Code, § 1794(d) states: "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action."

Plaintiffs move for attorneys' fees and costs pursuant to Civ. Code section 1794(d) as the prevailing party in this action. The parties settled this action on March 11, 2026. The settlement agreement stated that the Court would determine the amount of reasonable attorneys' fees and costs allowed to Plaintiffs as the prevailing party. Thus, the Court will determine the amount of reasonable attorneys' fees and costs incurred via this noticed motion.

"The trial court has "broad authority" to determine the amount of [reasonable attorneys' fees]."

PLCM Group v. Drexler (2000)

22 Cal.4th 1084, 1095. "[T]he fee

setting inquiry in California ordinarily begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate." Id.

"California courts have consistently held that a computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys' fee award." Id.

"The experienced trial judge is the best judge of the value of professional services rendered in his court, and while his judgment is of course subject to review, it will not be disturbed unless the appellate court is convinced that it is clearly wrong." Ketchum v.

Moses (2001) 24 Cal.4th 1122, 1132 (internal quotation omitted.)

Thus, Plaintiffs are entitled to attorneys' fees under the lodestar method based on the reasonable amount of time the attorney spent multiplied by a reasonable rate. Plaintiffs request \$54,757.79 in attorneys' fees and costs.

Plaintiffs attached a full accounting of the billing records in this action. (Decl., Sepehr Daghighian, Ex. A). Plaintiffs' counsel also provided a summary of the rates charged by the attorneys who worked on this case and their background and experience. The rates range from \$350/hour to \$700/hour. (Id. at ¶ 7-11).

"The lodestar adjustment method requires the trial court first to determine a touchstone or lodestar figure based on actual time spent and reasonable hourly compensation for each attorney. The touchstone figure may then be augmented or diminished by taking various relevant factors into account, including (1) the novelty and difficulty of the questions involved and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; and (3) the contingent nature of the fee award, based on the uncertainty of prevailing on the merits and of establishing eligibility for the award. For Song-Beverly Consumer Warranty Act claims, [a] prevailing buyer has the burden of 'showing that the fees incurred were "allowable," were "reasonably necessary to the conduct of the litigation," and were "reasonable in amount." Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 998 (internal citations and quotations omitted). "Just as a court has discretion to increase the lodestar under several factors in such a case, it may also decrease it by looking at those same factors, including [...] the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and other circumstances in the case." Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 160–161(internal quotations omitted).

The Court deems that, based on the nature of this case and the complexity of this case, the action does not warrant the addition of any multiplier or a deduction through the imposition of a negative multiplier. The Court finds that the hourly rates charged were excessive considering the nature of this case, the settlement amount, the attorneys' experience and background, the hourly rate in the community, and the type of work undertaken by counsel. The Court finds that \$350/hour is a reasonable hourly rate for the type of work, case, and nature of this case.

The Court declines to reduce the hours spent litigating this action. While there may be certain areas of billing and time spent where an opposing party might have grounds to question, the Court cannot state that the hours expended were unnecessary or unreasonable. However, the

Court does reduce the amount of time requested that is simply based on an estimated time, to review the opposition, prepare the Reply, and attend the hearing. Plaintiffs set forth an anticipated amount of hours of 7.5 hours. The Court reduces this to 2.5 hours.

The Court therefore finds that 66.6 hours is a reasonable amount of time expended at the hourly rate of \$350.00/hour, for a total amount of \$23,310.00. Costs and expenses in the amount of \$3,855.29 are reasonable in amount and the costs are recoverable items of costs under CCP § 1033.5.

Therefore, the Court grants Plaintiffs' Motion for Attorneys' Fees, in part. Thus, the Court fixes reasonable attorneys' fees in the amount of \$23,310.00. The Court fixes the amount of costs and expenses in the amount of \$3,855.29. The Court awards attorneys' fees, costs, and expenses in the total amount of \$27,165.29.

Plaintiffs are ordered to give notice of this ruling.